

**SUBSTITUTE FOR
HOUSE BILL NO. 5327**

A bill to amend 2016 PA 436, entitled
"Unmanned aircraft systems act,"
by amending section 22 (MCL 259.322).

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 22. (1) A person shall not knowingly and intentionally
2 operate an unmanned aircraft system to subject an individual to
3 harassment. As used in this subsection, "harassment" means that
4 term as defined in section 411h or 411i of the Michigan penal code,
5 1931 PA 328, MCL 750.411h and 750.411i.

6 (2) A person shall not knowingly and intentionally operate an
7 unmanned aircraft system within a distance that, if the person were
8 to do so personally rather than through remote operation of an
9 unmanned aircraft, would be a violation of a restraining order or



1 other judicial order.

2 (3) A person shall not knowingly and intentionally operate an
3 unmanned aircraft system to violate section 539j of the Michigan
4 penal code, 1931 PA 328, MCL 750.539j, or to otherwise capture
5 photographs, video, or audio recordings of an individual in a
6 manner that would invade the individual's reasonable expectation of
7 privacy.

8 (4) An individual who is required to register as a sex
9 offender under the sex offenders registration act, 1994 PA 295, MCL
10 28.721 to ~~28.736~~, **28.730**, shall not operate an unmanned aircraft
11 system to knowingly and intentionally follow, contact, or capture
12 images of another individual, if the individual's sentence in a
13 criminal case would prohibit the individual from following,
14 contacting, or capturing the image of the other individual.

15 **(5) Except as otherwise provided in subsection (6), a person**
16 **shall not knowingly and intentionally operate an unmanned aircraft**
17 **system in a manner that prevents an owner or occupant of a private**
18 **dwelling from the quiet enjoyment of that private dwelling. It is**
19 **rebuttably presumed that the owner or occupant of a private**
20 **dwelling is not prevented from the quiet enjoyment of that private**
21 **dwelling by the operation of an unmanned aircraft system over that**
22 **private dwelling if both of the following apply:**

23 **(a) A telecommunications provider operates the unmanned**
24 **aircraft system between 8:00 a.m. and 5:00 p.m. for a reasonable**
25 **amount of time not exceeding 60 minutes to inspect, maintain,**
26 **repair, construct, or otherwise work on communications or**
27 **telecommunications service facilities installed by the**
28 **telecommunications provider at the private dwelling.**

29 **(b) The telecommunications provider operates the unmanned**



1 aircraft system within the utility easement for the communications
2 or telecommunications facilities described in subdivision (a).

3 (6) Subsection (5) does not apply to the operator of an
4 unmanned aircraft system who receives consent from the owner or
5 occupant of a private dwelling to operate the unmanned aircraft
6 over that private dwelling.

7 (7) As used in subsection (5), "telecommunications provider"
8 means a business, or an affiliate of that business, that, in part
9 or in whole, offers telephone, wireless, video, broadband, or other
10 similar services and that is regulated by either or both of the
11 following:

12 (a) The Michigan public service commission under the Michigan
13 telecommunications act, 1991 PA 179, MCL 484.2101 to 484.2603, or
14 the uniform video services local franchise act, 2006 PA 480, MCL
15 484.3301 to 484.3315.

16 (b) The Federal Communications Commission under the
17 communications act of 1934, 47 USC 151 to 1754.

18 Enacting section 1. This amendatory act takes effect 90 days
19 after the date it is enacted into law.